

State Vs. Manish Menariya
FIR No.538/2024
U/s 318/319/61 (2) BNSS

ANUJ KUMAR SINGH
Chief Judicial Magistrate,
26 G.F. Annexe Building
Patiala House Courts
New Delhi

09.01.2025

This is an application for grant of bail u/s 480 BNSS moved on behalf of accused Manish Menariya, son of Shri Ramesh Chandra.

Present: Ld. APP for the State.

Shri Tamardhwaj Sharma, Id. Counsel for accused/applicant.

Arguments has already been heard.

It has been submitted on behalf of accused that the accused has been falsely framed in the present case and he has no concern and nothing to do with the alleged offence. It is stated that applicant/accused is in judicial custody w.e.f. 14.12.2024. It is stated that in the entire FIR, applicant has neither been named nor any relation of the applicant/accused has been shown related to the offence committed in the FIR. It is stated that two whatsapp groups are mentioned in the FIR, namely, Bajaj Finserv-Baja SST-XAI International and Saif India Stock-VIP 205, however the applicant/accused is neither the group member of these groups nor has any acquaintances of any kind with these groups. The applicant/accused has no acquaintances with the complainant as well and the police officials have arrested the accused from his home without any evidence against him. It is stated that the applicant/accused has no previous criminal record and he works as labour on a daily wage of Rs.200/- per day. There is no likelihood of the applicant/accused absconding or tampering with the evidence or witnesses.

On the other hand, it has been contended by the Ld. APP for State and IO that the complainant Arun Kumar Jain was cheated to the tune of Rs.18.86 crores on the pretext of investment in stock market through WhatsApp Groups. It is stated that accused Manish Menariya was arrested



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on 13.12.2024 from Udaipur, Rajsathan on the basis of technical surveillance and identification/instance of accused Akash kataré. After his arrest 3 mobile phones and 3 cheque books etc. of Canara Bank/IFDC Bank/ Bank of Baroda were recovered. It is stated that mobile phone of the applicant/accused was also found containing a APK file used for getting access of SIM/Mobile associated with Mule accounts. It is stated that multiple WhatsApp Chats with his associates revealing his complicity in handling bank accounts was found. It is stated that said APK file was got analysed in NCFL Lab of i4C MHA at IFSO office and was found containing malware sms(3).apk is not available on Google Play store and the application is flagged as SMS-Thief on Virus Total and is taking potentially dangerous permissions such read SMS, Receive SMS, Broadcast SMS etc. which were used for operating the bank accounts used for receiving crime money. It is stated that during his PC remand, applicant/accused Manish had pointed out 3 hotels, which were used by them to arrange the stay of account holders in similar manner, which indicates proves that applicant/accused Manish and accused Vishal are part of syndicate involved in arranging mule bank accounts at large scale to facilitate the receipt of crime money in mule accounts. It is stated that the applicant/accused also disclosed that he arranged the stay of account holders in various hotels in Udaipur and can identify the same. On his pointing out Place of stay arranged for the stay of account holder were identified. He was also seen visiting Hotels at the time of Stay of account holders along with his associate in the CCTV footage of the hotel. It is stated that accused Viraj when confronted with applicant accused Manish Menariya and during interrogation revealed that he met Manish and Vishal @Shivam in Nadiyad around 26/27th October when he visited there with his



friend Sumit Agarwal. One more person Jayesh was also with them. Applicant accused Manish Menariya with his associate Vishal @ Shivam and ors. visited Ahmedabad where Akash delivered account docs/Sim/User ID and Password etc to Vishal @ Shivam and Manish through Viraj. It is stated that the CDR analysis of accused corroborate the version of accused persons. It is further stated that investigation of the case is pending and the same is under progress and other co-accused are yet to be traced. Evidence in the present case is fragile in nature and can be tempered remotely. The allegations are serious in nature and amount involved is Rs. 18.86 Crores. It is prayed that bail application of applicant/accused may be dismissed.

Record perused.

This Court, while considering granting bail to an accused has to note the following factors laid down by the Hon'ble Supreme Court in ***Prasanta Kumar Sarkar Vs Ashis Chatterjee*** (2010) 14 SCC 496; ***State of Uttar Pradesh vs. Amaramani Tripathi*** (2005) 8 SCC 21 and ***Deepak Yadav Vs. State of Uttar Pradesh*** (2022) 8 SCC 559:-

- a. whether there is any prima facie or reasonable ground to believe that the accused had committed the offence;
- b. nature and gravity of the accusation;
- c. severity of the punishment in the event of conviction;
- d. danger of the accused absconding or fleeing, if released on bail;
- e. character, behaviour, means, position and standing of the accused;
- f. likelihood of the offence being repeated;
- g. reasonable apprehension of the witnesses being influenced;
- h. danger, of course, of justice being thwarted by the grant of bail.

Although, the court is mindful of the fact that pre-trial detention is frowned upon by law, however, Court is conscious of the fact that in Cyber Crime direct evidence qua accused is rarely found. In the present case, the applicant/accused was arrested at the instance of accused



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Akash Katare and 3 mobile phones and 3 cheque books of Canara Bank, IDFC Bank and Bank of Baroda and one envelope containing kit of bank account of Axis Bank, Paytm Card, sim of Airtel and 2 ATM cards were recovered from the possession of the accused and APK file found in the mobile of applicant/accused is flagged as SMS Thief which shows that the applicant/accused played active role in the commission of crime. Investigation is at initial stage.

The issue of personal liberty is sacrosanct and is jealously guarded, while guarding the rights of the accused, the rights of the victim cannot be lost sight off.

Considering the facts and circumstances of the case, this Court is not inclined to allow the present bail application. **Accordingly, the bail application of applicant/accused Manish Menariya, son of Shri Ramesh Chandra. is hereby dismissed.**

Copy of this order be given dasti to all concerned. Copy of order be sent to the accused through concerned Jail Superintendent.



ATTESTED
Reader of 'CMM' -ND
09/01/25

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(Anuj Kumar Singh)
CJM/NDD/PHC/ND
09.01.2025 (m)
Chief Judicial Magistrate
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New Delhi